

CLIENT SERVICE AGREEMENT

Professional Services Agreement between Williams Digital and Soar Bungee Fitness

EFFECTIVE DATE
Upon Acceptance

VERSION
1.0

JURISDICTION
United States

PARTIES

This Client Service Agreement (the "**Agreement**") is entered into by and between:

SERVICE PROVIDER

Williams Digital, a digital services and web development firm specializing in website design, development, hosting, maintenance, and related digital solutions.

Contact: **Dylan@williamsdigital.io**

CLIENT

Soar Bungee Fitness, a bungee fitness studio offering bungee classes, personal training, and nutrition coaching based in D'Iberville, Mississippi.

SCOPE OF SERVICES

The Service Provider agrees to provide the Client with professional digital services, which may include but are not limited to:

- ♦ **Website Design & Development** — Custom design and development of a responsive marketing website for Soar Bungee Fitness, including class information, schedules, pricing, instructor profiles, and contact functionality.
- ♦ **Class & Pricing Pages** — Build-out of class descriptions, membership tiers, drop-in pricing, and party/event booking information.
- ♦ **Booking & Inquiry Flow** — Integration of booking, class sign-up, or inquiry forms suited to a fitness studio (linking to a third-party booking platform if applicable).
- ♦ **Website Hosting & Deployment** — Setup, configuration, and management of the web hosting environment including domain configuration and SSL certification.
- ♦ **Website Maintenance & Updates** — Ongoing maintenance, content updates, schedule/price changes, bug fixes, and performance optimization.
- ♦ **Brand & Visual Identity** — Light development of digital brand elements including colors, typography, and visual treatments for web use, in alignment with Soar's existing identity.
- ♦ **Search Engine Optimization (SEO)** — On-page optimization, metadata configuration, and local-SEO best practices to improve visibility for D'Iberville and the Mississippi Gulf Coast region.
- ♦ **Digital Consulting** — Strategic guidance on digital presence, technology selection, and online business solutions.

The specific services to be provided shall be determined in consultation between the Service Provider and the Client and may be further detailed in a separate Statement of Work or engagement letter.

REVISION POLICY

The initial project includes up to **three (3) rounds of revisions** during the design and development phase. A revision round consists of a consolidated set of feedback submitted at one time. Additional revision rounds beyond the included three will be billed at the Service Provider's hourly rate of **\$50/hour**. Revisions must be requested within **seven (7) days** of receiving a design proof or deliverable; otherwise, the deliverable will be considered approved.

CHANGE ORDERS & SCOPE CHANGES

Any work requested by the Client that falls outside the originally agreed-upon scope of services will require a written **Change Order**. The Service Provider will provide a quote for the additional work, and no work will commence until the Client approves the Change Order in writing. Change Orders may affect the project timeline and will be billed separately from the build fee.

FEES AND PAYMENT

In consideration of the services provided, the Client agrees to compensate the Service Provider as follows:

BUILD FEE — TOTAL \$500.00 USD

A one-time build fee of **\$500.00 USD** covers the initial website design, development, and deployment. This fee is split into two installments:

- ♦ **Deposit — \$250.00 USD** due upon acceptance of this Agreement. Work begins after the deposit is received.
- ♦ **Final Payment — \$250.00 USD** due upon launch of the live website to the Client's domain.

MONTHLY MAINTENANCE FEE

A recurring monthly fee of **\$30.00 USD** for ongoing website hosting, maintenance, updates, monitoring, and support. This fee covers hosting, SSL certification, security updates, routine content updates (such as schedule or pricing changes), and ongoing technical support and minor updates. The monthly maintenance fee begins on the date the website is launched live.

PAYMENT METHODS

Payment shall be submitted via the secure payment link(s) provided by the Service Provider. Payment details and instructions will be included on the invoice.

PAYMENT TERMS

The deposit is due in full upon acceptance of this Agreement. The final build payment is due upon launch of the live website. The monthly maintenance fee begins upon launch and continues until cancelled. A late fee of **1.5% per month** may be assessed on any balance remaining unpaid beyond thirty (30) days from the invoice date. The Service Provider reserves the right to delay or suspend services for any account with an outstanding balance exceeding thirty (30) days.

CANCELLATION & REFUND POLICY

Should the project be cancelled by the Client after work has commenced, the **\$250.00 deposit is non-refundable** as it covers discovery, planning, and development work already performed. If the project is cancelled prior to launch, no final build payment shall be owed. The monthly maintenance fee may be cancelled at any time with **thirty (30) days** written notice. If the Service Provider cancels before any work has been performed, the full deposit will be refunded.

INTELLECTUAL PROPERTY & OWNERSHIP

Upon receipt of full payment for the build fee, the Client shall receive ownership of all custom-designed deliverables, including website files, graphics, and content created specifically for the Client. The Service Provider retains the right to use general techniques, tools, and methodologies developed or utilized during the engagement. Third-party assets (fonts, stock images, plugins) remain subject to their respective license agreements.

PORTFOLIO & CREDIT RIGHTS

The Service Provider retains the right to **display and reference** the completed website and related deliverables in their professional portfolio, marketing materials, case studies, and social media. The Client agrees that a small, unobtrusive credit line (e.g., "Powered by Williams Digital") may be placed in the website footer. If the Client wishes to opt out of the credit line, this must be agreed upon in writing prior to the commencement of work.

DOMAIN & HOSTING OWNERSHIP

Any domain names registered on behalf of the Client shall be **owned by the Client**. The Service Provider will register domains under the Client's name and contact information. Hosting accounts managed by the Service Provider remain under the Service Provider's administrative control for the duration of the service engagement. Upon termination and settlement of all outstanding balances, the Service Provider will assist in transferring access to the Client within a reasonable timeframe.

CONFIDENTIALITY

Both parties acknowledge that in the course of this engagement, confidential and proprietary information may be disclosed. Each party agrees to:

- ♦ Maintain the **strict confidentiality** of all information received from the other party.
- ♦ Not disclose, reproduce, or distribute any confidential information to any third party without the prior written consent of the disclosing party.
- ♦ Use confidential information solely for the purposes of fulfilling obligations under this Agreement.
- ♦ Take reasonable precautions to protect the confidentiality of the information, no less protective than those used for their own confidential information.

This confidentiality obligation shall survive the termination of this Agreement and continue for a period of **five (5) years** following termination or expiration.

CLIENT RESPONSIBILITIES

To facilitate the effective delivery of services, the Client agrees to:

- Provide **timely, accurate, and complete** content, assets, branding materials, and information as reasonably requested by the Service Provider.
- Respond to communications, design proofs, and requests for approval within a reasonable timeframe.
- Designate a primary point of contact for all matters relating to this engagement.
- Review and provide feedback on deliverables within the timeframes specified, understanding that delayed feedback may extend project timelines.
- Ensure that all content, images, instructor photos, and materials provided to the Service Provider are owned by the Client or properly licensed.
- Maintain accurate class schedules, pricing, and contact information and notify the Service Provider of needed updates.

Delays or failure to meet these responsibilities may impact the timeline and effectiveness of the services provided, and the Service Provider shall not be held liable for any resulting delays.

PROJECT PAUSE & CLIENT INACTIVITY

If the Client becomes unresponsive or fails to provide requested materials, feedback, or approvals for a period of **fourteen (14) consecutive days**, the project will be placed on hold. A **reactivation fee of \$100.00 USD** may apply to resume work after a project pause. Projects paused for more than **sixty (60) days** may be treated as cancelled under the Cancellation & Refund Policy outlined in Section 3.

LAUNCH SIGN-OFF

Prior to the public launch of the website, the Service Provider will present the completed website to the Client for **final review and approval**. The Client shall have **five (5) business days** to review and provide written approval or submit final revision requests. Upon Client approval, the Service Provider will proceed with launch and the final build payment of \$250.00 will become due. If the Client does not respond within this period, the website will be deemed approved and the Service Provider may proceed with launch.

TERM AND TERMINATION

This Agreement shall become effective upon acceptance by the Client and shall remain in effect until the completion of the agreed-upon services and the duration of the monthly maintenance engagement, unless earlier terminated as follows:

TERMINATION BY EITHER PARTY

Either party may terminate this Agreement at any time by providing **thirty (30) days** written notice to the other party. Upon termination, the Service Provider will provide the Client with all completed deliverables and assist with a reasonable transition period.

TERMINATION FOR CAUSE

Either party may terminate this Agreement immediately upon written notice if the other party materially breaches any provision and fails to cure such breach within **five (5) days** of receiving written notice.

EFFECT OF TERMINATION

Upon termination, the Client shall pay the Service Provider for all services rendered up to the effective date of termination. The Service Provider will deliver all completed work product and provide reasonable assistance for transition. All confidentiality obligations shall survive termination as specified in Section 4.

LIMITATION OF LIABILITY

The Service Provider provides professional digital services with reasonable care and industry-standard practices. To the maximum extent permitted by applicable law:

- ♦ The Service Provider shall not be liable for any **indirect, incidental, special, consequential, or punitive damages** arising out of or related to this Agreement.
- ♦ The Service Provider's total aggregate liability under this Agreement shall not exceed the **total fees paid by the Client** under this Agreement.
- ♦ The Service Provider is not responsible for **third-party service disruptions** including hosting provider outages, domain registrar issues, or changes to third-party booking, payment, or social platforms.
- ♦ The Client is responsible for maintaining **backups of their own content** and data.

The Service Provider makes no guarantees regarding specific business outcomes, search engine rankings, class bookings, or website traffic resulting from the services provided.

WARRANTY DISCLAIMER

All services and deliverables are provided "**as-is**" and "**as-available.**" The Service Provider makes no warranties, express or implied, including but not limited to warranties of merchantability, fitness for a particular purpose, or uninterrupted, error-free operation of any website or digital product.

FITNESS & HEALTH DISCLAIMER

The website may display information about fitness classes, training services, and nutrition coaching offered by the Client. The Service Provider is responsible only for the digital presentation of such information and is **not liable** for any injury, health outcome, or claim arising from the fitness services or any content authored by the Client. The Client is solely responsible for the accuracy and appropriateness of any health, safety, waiver, or medical-disclaimer language presented on the website.

CLIENT CONTENT INDEMNIFICATION

The Client agrees to **indemnify, defend, and hold harmless** the Service Provider from any claims, damages, losses, liabilities, or expenses arising from content, images, trademarks, or materials provided by the Client.

TIME LIMITATION ON CLAIMS

Any claim arising out of or related to this Agreement must be filed within **six (6) months** of the event giving rise to the claim.

ACCESSIBILITY DISCLAIMER

The Service Provider builds websites using **modern web standards and best practices** to support accessibility. However, full compliance with WCAG 2.1 AA or the ADA is **not guaranteed** unless a dedicated accessibility audit has been explicitly contracted in a separate Statement of Work.

DISPUTE RESOLUTION

In the event of any dispute, the parties agree to first attempt to resolve the matter through **good faith negotiation**. If the dispute cannot be resolved within thirty (30) days, the parties agree to submit the dispute to **binding arbitration** in accordance with the rules of the American Arbitration Association.

The arbitration shall be conducted in the United States, and the decision of the arbitrator shall be final and binding. Each party shall bear its own costs, and the costs of the arbitrator shall be shared equally.

GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the **laws of the State of Alabama**, without regard to its conflict of laws principles. Any legal proceedings related to this Agreement shall be conducted within the appropriate jurisdictions of the State of Alabama.

GENERAL PROVISIONS

- ♦ **Entire Agreement** — This Agreement constitutes the entire agreement between the parties and supersedes all prior agreements, understandings, and representations.
- ♦ **Amendments** — This Agreement may only be amended or modified in writing, signed by both parties.
- ♦ **Severability** — If any provision is found to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.
- ♦ **Waiver** — The failure of either party to enforce any right or provision shall not constitute a waiver of such right.
- ♦ **Assignment** — The Client may not assign this Agreement without the prior written consent of the Service Provider.
- ♦ **Force Majeure** — Neither party shall be liable for delays or failures in performance resulting from causes beyond their reasonable control.

ACKNOWLEDGMENT & SIGNATURES

By signing below, each party acknowledges that they have read, understood, and agree to be bound by the terms and conditions set forth in this Client Service Agreement.

SERVICE PROVIDER

Signature

Printed Name

Date

CLIENT — SOAR BUNGEE FITNESS

Signature

Printed Name

Date